

Before the
FEDERAL MARITIME COMMISSION

Washington, DC 20573

Docket No. 22-21

MSRF Inc. v. Yang Ming Marine Transport Corporation

CONDITIONAL CONSENT MOTION TO AMEND SCHEDULING ORDER

Complainant MSRF Inc. hereby moves to amend the scheduling order entered by the Presiding Officer on October 13, 2022.

The parties issued their initial requests for discovery, including for production and electronically stored information by October 17, 2022, in compliance with the scheduling order. While MSRF has been diligently working to comply with Respondent's requests, a problem with the collection and filtering of the responsive emails was identified late in the process. MSRF therefore needs additional time to resolve this problem and to ensure that its response is complete but does not overwhelm Respondent with unresponsive information. Clark Hill's electronic discovery team has reviewed the issue and a solution has been identified. MSRF will be able to utilize this solution to respond to Respondent Yang Ming Transport Corporation's Request for Admissions and First Set of Interrogatories and Request for Documents by December 21, 2022.

Due to the discovery delays, and considerations regarding existing commitments by Respondent's counsel, the parties propose the following amended scheduling order:

December 21, 2022	Parties to Serve Objections and Responses to Initial Written Discovery Requests and May Begin to Notice Depositions
February 15, 2023	Last Day to Serve Supplemental Written Discovery Requests
March 16, 2023	Parties to Serve Objections and Responses to Supplemental Written Discovery Requests
March 17, 2023	Discovery ends, other than motions to compel and/or for protective order, which shall be made by April 3, 2023
April 28, 2023	Complainant's Brief, Proposed Findings of Fact, and Appendix
June 2, 2023	Respondent's Opposition Brief, Responses to Proposed Findings of Fact, Proposed Findings of Fact, and Appendix

June 16, 2023

Complainant's Reply Brief and Responses to Proposed Findings of Fact

The parties recognize that the proposed scheduling order goes beyond the deadlines set out in the October 17 scheduling order and may require the Presiding Officer to seek an extension from the Commission for issuance of her Initial Decision. We apologize for that, but note that we have streamlined the process by removing provisions regarding expert reports. The parties have agreed that expert testimony will not be needed for this matter. The schedule is also extended to accommodate long-standing family travel plans of Respondent's counsel which preclude a schedule where Respondent's briefing would occur in May.

On December 7, 2022, undersigned counsel conferred by email with Rebecca Fenneman and Eric Jeffrey, counsel for Respondent Yang Ming Transport Corporation. Ms. Fenneman and Mr. Jeffrey consented to this motion, but identified that such consent as to extension of the time for responding to discovery is conditioned on the other changes sought.

For the foregoing reasons, Complainant MSRF requests that the Commission grant the motion to amend the scheduling order.

Dated: December 7, 2022

Respectfully submitted,

/s/ R. Kevin Williams

R. Kevin Williams
Clark Hill PLC
130 E. Randolph Street, Suite 3900
Chicago, IL 60601
Telephone: 312-985-5907
Fax: 312-985-5956
kwilliams@clarkhill.com

CERTIFICATE OF SERVICE

I certify that on the 17th day of October, 2022, the foregoing document was served by email on all counsel of record in accordance with 46 CFR Part 502 and the Commission's Order of May 12, 2020.

Attorneys for Respondent

Rebecca F. Fenneman
RFenneman@JeffreyFenneman.com
Eric Jeffrey
EJeffrey@JeffreyFenneman.com
700 12th Street, NW, Suite 700
Washington, DC 20005

s/ R. Kevin Williams

R. Kevin Williams
130 E. Randolph Street, Suite 3900
Chicago, IL 60601
Telephone: 312.985.5907
Email: kwilliams@clarkhill.com